

TENTATIVE RULING

Case: **Ghavamzadeh v. Lock**
Case No. CV2025-2216

Hearing Date: **June 2, 2026** **Department Fourteen** **9:00 a.m.**

The Court notes that defendants did not meet and confer “in person, by telephone, or by video conference” prior to the filing of this demurrer. (Code Civ. Proc., § 430.41, subd. (a); Corsaut decl., ¶¶ 2-3, Exhibits A & B.) However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer” and therefore, the Court reaches the merits of defendant’s demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

Defendants Norcal Gold, Inc. and Tracy Harris’ (collectively, “defendants”) demurrer to the first cause of action (breach of contract) in plaintiff Vesta Ghavamzadeh, as Trustee of The Olivia & Elliot Trust’s (“plaintiff”) first amended complaint (“FAC”) on the ground of failure to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (See *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [noting that “the trial court had no obligation to undertake its own search of the record ‘backwards and forwards to try to figure out how the law applies to the facts’ of the case”], citation omitted; FAC, ¶¶ 28-34, Exhibits B & C.)

Defendants’ demurrer to the first cause of action (breach of contract) in plaintiff’s FAC on the ground of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) Defendants have failed to show this cause of action is “so incomprehensible” that defendants cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; FAC, ¶¶ 28-34.)

Defendants have 10 days from the hearing date, by no later than **June 12, 2026**, to answer plaintiff’s FAC complaint. (Cal. Rules of Court, rule 3.1320(j).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Merritt v. Hoblit Chrysler Jeep Dodge et al.**
Case No. CV2026-0941

Hearing Date: **June 2, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Hoblit Chrysler Jeep Dodge’s (“defendant”) motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Snyder Decl., ¶ 2, Exh. A.) The Court finds that the validity and enforceability of the arbitration provision was delegated to an arbitrator for determination. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892 [“[a]lthough threshold questions of arbitrability are ordinarily for courts to decide in the first instance under the FAA [citation], the ‘[p]arties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement’”]; *Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 68-69; *Nielsen Contracting, Inc. v. Applied Underwriters, Inc.* (2018) 22 Cal.App.5th 1096, 1107-1109; see also *Wright v. WellQuest Elk Grove, LLC* (2026) 119 Cal.App.5th 267; Snyder Decl., ¶ 2, Exh. A.)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.